IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No3

CP(CAA)/54(AHM)2022
in
CA(CAA)/80(AHM)2021

Proceedings under Section 230-232 of Co.Act,2013

IN THE MATTER OF:

Dholka Plywood Industries Pvt Ltd **.....Applicant**

.....Respondent

Order delivered on 25/08/2022

Coram:

Dr.Deepti Mukesh, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant : Mr. Saurabh Soparkar, Sr. Adv.
For the Respondent :

ORDER

Second motion petition filed under Section 230-232 of the Companies Act.

Learned Sr. Counsel Mr. Soparkar states that first motion order was passed and application was allowed on 06.06.2022 and admittedly this petition is filed belatedly. He makes oral request to condone the delay as company was under impression that after the compliance of the order passed on 06.06.2022 with respect to directions for issuing notices to the regulators, this second motion can be filed, hence, motion was filed after complying the order of 06.06.2022. Considering the submission made, we condone the delay in filing second motion petition. Learned Sr. Counsel Mr. Soparkar further states that there are no foreign investors in the Petitioner companies and also petitioner companies are not listed and also threshold required under the Competition Commission is not applicable, hence, no notice be issued RBI, SEBI and CCI.

The Petitioner had served Notice(s) to Statutory Authorities as per order dated 06.06.2022 and also filed affidavit evidencing service to concerned Authorities.
The petition is admitted.

The Petitioner shall advertise Notice of hearing of this petition in "Financial Express" Ahmedabad Edition and Gujarati translation thereof in "Financial Express" Ahmedabad Edition in vernacular language not less than ten days before fixed date of hearing, calling for objections, if any, on or before the date of hearing.

The Petitioner shall issue notice(s) to following, informing the date of hearing:

1. **Regional Director and the Registrar of Companies** both situated at *RoC* Bhavan, Opp. Rupal Park Society, Behind Ankur Bus Stop, Naranapura, Ahmedabad (380013)**.**

2. **The Income Tax Department** at respective ward officers with details of PAN of all Petitioners Companies and also Office of Principal Chief Commissioner Income Tax, at their present address.

List on 06.10.2022.

-Sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

-Sd-

DR. DEEPTI MUKESH
MEMBER (JUDICIAL)